

IN THE SUPREME COURT OF INDIA
CRIMINAL APPELLATE JURISDICTION
CRIMINAL APPEAL NO. ____ OF 2026

Rakesh Yadav ... Appellant

VERSUS

State of Haryana ... Respondent

GROUND FOR BAIL

1. This Hon'ble Court in *Rana Nahid @ Reshma @ Sana & Anr. v. Sahidul Haq Chisti* has held that a Family Court has no jurisdiction to convert a petition filed under Section 125 CrPC by a divorced Muslim woman into an application under Section 3 of the Muslim Women (Protection of Rights on Divorce) Act, 1986. The Appellant relies on this precedent for the proposition that statutory forums cannot re-characterise proceedings beyond the relief actually sought.

2. This Hon'ble Court in *Tarun Kumar v. Assistant Director, Directorate of Enforcement* has categorically held that bail must be granted automatically and as a matter of course to any accused under the Prevention of Money Laundering Act who is not named in the original FIR, regardless of the evidence subsequently placed on record through witness statements. The Appellant submits that he is entitled to bail on this ground alone, since he was not named in the FIR in the present case either.

3. This Hon'ble Court in *Suresh Patil v. State of Maharashtra*, reported at 2020 (3) Bom CR 450, has held that economic offences of this nature do not warrant custodial interrogation where the accused has cooperated with the investigating agency. The Appellant places reliance on this judgment as directly applicable to the facts of the present case.

PRAYER

It is therefore most respectfully prayed that this Hon'ble Court be pleased to enlarge the Appellant on bail.